

**JUSTIFICATION AND APPROVAL (J&A) FOR OTHER THAN FULL AND OPEN
COMPETITION PURSUANT TO FAR SUBPART 6.3**

1. Identification of the agency and the contracting activity:

This is a justification for other than full and open competition for an acquisition being conducted by the Department of State, Embassy Asuncion, Contracting Office.

2. Nature and/or description of the action being approved:

The United States Embassy in Asuncion, Paraguay, requires a sole-source award to CAMFIL USA, Inc. for the procurement of replacement filters for the Air Handling Units (AHUs) installed in the New Embassy Compound (NEC). CAMFIL is the only brand manufacturer that satisfies the performance requirements and compatibility with the AHUs being used by the NEC Asuncion Post. The urgency of this procurement is critical, as the non-availability of these parts will severely affect the operation of the units and may cause serious environmental and health hazards to the buildings, which are in constant occupation of many employees.

3. A description of the supplies or services required to meet the Agency's needs (including estimated value):

The acquisition involves the procurement of CAMFIL replacement filters for the AHUs to ensure the proper functioning of the ventilation system. These filters are essential to maintain the performance and reliability of the AHUs, ensuring a safe and healthy environment for embassy employees. The estimated cost is \$35,000 USD.

4. An identification of the statutory authority permitting other than full and open competition:

This acquisition is conducted under the authority of 41 U.S.C. 3304, as implemented by FAR 6.3 and substantiated by the following:

- ☒ FAR 6.302-1 – Only one responsible source and no other supplies or services will satisfy agency requirements.
- ☐ FAR 6.302-2 – Unusual and compelling urgency.
- ☐ FAR 6.302-3 – Industrial mobilization; engineering, developmental, or research capability; or expert service.
- ☐ FAR 6.302-4 – International Agreement.
- ☐ FAR 6.302-5 – Authorized or required by statute.
- ☐ FAR 6.302-6 – National Security.
- ☐ FAR 6.302-7 – Public Interest.

5. A demonstration that the proposed contractor's unique qualifications or the nature of the action require use of the authority cited:

CAMFIL USA, Inc. is uniquely qualified to provide these services to the NEC Asuncion Post based upon the following:

- **Compatibility:** CAMFIL filters are the only brand that meets the specific performance requirements and compatibility with the AHUs used by the NEC Asuncion Post.
- **Urgency:** The non-availability of these parts will severely affect the operation of the units and may cause serious environmental and health hazards to the buildings.
- **Proven Expertise:** CAMFIL USA, Inc. has a proven track record of providing high-quality filters that ensure efficient performance and align with embassy standards.

6. A description of efforts to ensure that offers are solicited from as many potential sources as is practicable:

Given the specialized compatibility required, contacting alternate suppliers was deemed impractical. CAMFIL USA, Inc.'s established track record and exclusive compatibility make them the most viable option to address the immediate threat to the ventilation system's stability.

7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable:

The Contracting Officer has determined the anticipated cost/price to the Government for the supplies/services covered by this J&A will be fair and reasonable based on benchmarking against similar procurements, confirming that the proposed cost is fair and aligned with market rates for specialized filters of this nature.

8. A description of the market research conducted (see part 10) and the results or a statement of the reason market research was not conducted:

A market survey was not conducted due to the supplier's unique compatibility with the AHUs. The urgency of mitigating the risk to embassy operations necessitates swift action with a proven supplier.

9. Any other facts supporting the use of other than full and open competition:

Delays in procuring the filters could lead to further HVAC system failures, endangering embassy operations. The immediate intervention by a knowledgeable supplier is essential to mitigate ongoing risks.

10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition:

None expressed interest in writing.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required:

For future needs, the embassy may explore broader market options, but immediate requirements necessitate this direct award.

CERTIFICATIONS

TECHNICAL AND REQUIREMENTS CERTIFICATION - FAR 6.303-2(c)

I certify that any supporting data under my cognizance and which form a basis for this justification are complete and accurate to the best of my knowledge and belief.

SIGNATURE:



Nicholas Carros

Facility Manager

Date: 4/7/2025

CONTRACTING OFFICER CERTIFICATION - FAR 6.303-2(b)(12)

I certify that this submission is accurate and complete to the best of my knowledge and belief.

SIGNATURE:



Anthony Sung

Contracting Officer

Date: Apr 7, 2025